

of paying a dowry to the father in every case of marriage is no longer known, and therefore, though the fine is retained, it cannot, as in S, be estimated by usual practice as to the dowry of virgins, but requires to be fixed by law. When this important change in marriage customs took place we cannot say with precision. In the time of Saul the payment of a *móhar* was still usual (1 Samuel xviii. 25); but the book of Kings has a technical word for dowry given by the father to his daughter (*shillûchîm*, 1 Kings ix. 16, literally "dismissal gift"), which implies a reversal of the old custom. In the post-Biblical Jewish law the dowry was settled on the wife, as well as the paraphernalia which she brought from her father's house [W. Robertson Smith. Additional answer to the Libel, 56-57].

A pretty theory, but one which rests entirely on the hypothesis that in no country can the custom of giving dowry co-exist with the custom of paying the father for his daughter. It is therefore a complete answer to point out that in Babylonia these two customs did so co-exist (Kohler und Peiser, *Aus dem Babylonischen Rechtsleben*, I. pp. 7, 8).

It should, moreover, be noticed that both the passages in the historical books relate to very exceptional cases. In the first citation, a subject desires to marry the daughter of his sovereign; while in the book of Kings, it is the king of Egypt who captures and burns Gezer, slays the Canaanites that dwelt in the city, and gives it for a portion unto his daughter, Solomon's wife. We may wonder whether such a use of historical material would be tolerated in any other field of inquiry. What would be said of a group of historians who should, for instance, point to the fact that, when Katharine of Portugal brought Bombay and Tangier as a portion on her marriage with Charles II., the English language had an apt term to express this, and should solemnly argue that the English law and custom of Dower must therefore have died out before 1660, and that the Eng-



lish marriage customs had undergone an important change?

As to the differences between the laws of Deuteronomy and Exodus, the explanation cannot be better given than in Professor Smith's own words: "The case contemplated is not that of seduction, but of violence to a maiden." In law, different premises habitually lead to different conclusions.

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A smaller divergence between the modes of effecting the contract for family bondage may be now made clear. The Judgement-book, Exodus xxi. 6, ordains that the master shall bring his slave "to God"; there at the door of the sanctuary, the centre of the administration of justice, the master shall bore his ear through with an awl, affixing it momentarily to the door-post, so that under the authority of religion he becomes a slave "for ever." The corresponding law in Deuteronomy xv. 12-18, introduces some interesting modifications. It is extended to women; it lays emphatic stress on generous recognition of the six years' forced labour; and in conclusion it retains the symbolic action with the awl. But it omits all reference to "God." The door-post to which the slave is attached is that of the householder's own dwelling. The public and official ceremony is converted into a private and domestic incident. The meaning of this change is not obscure. The law of Exodus belongs to the code which admits a plurality of sanctuaries: the Deuteronomic principles recognise but one. Important ceremonies, like the annual festivals, are transferred to the only centre of worship. There, too, must tithes be consumed (xiv. 23 . .), an express provision being inserted for those who lived too far off to take their tithes thither in kind. The case of the household slave, however, was not important enough to require the intervention of the supreme authorities in the capital, and the reference to justice and religion dropped ["The Hexateuch," I. 55-56; cf. Driver, Deuteronomy 184].

Nobody would infer from this that the translation "God," on which practically the whole of the above rests, is only an admittedly doubtful rendering of אֱלֹהִים, a word which is by some translated "judges."



The critics, having obtained the curious phrase "go to God"—a phrase better suited to idolaters than to the God of the Decalogue or a law-giver who worshipped Him—promptly substitute "the sanctuary" for "God." But the change is fatal. It is true that we meet with a number of erections which the critics term "sanctuaries," but what were these sanctuaries? Not buildings, but altars—that is, structures, which, whatever their merits as places of worship, would not possess the one essential for this ceremony, a door or door-post. And what a curious transaction it is! A "sanctuary" we have, but no priest, no congregation, no sacrifice, no ceremony, religious or other, merely this pinning of the slave's ear to the imaginary door or door-post. Is there any parallel to this in the legislation of the Pentateuch? And could this extraordinary proceeding serve any useful purpose?

Now let us try substituting "judges" for "God." Master and slave go to the judges. Where do the judges meet? Not at the notional door of a hypothetical "sanctuary," but at the gate (Deuteronomy xxi. 19, xxv. 7; Joshua xx. 4; Ruth iv.; Zachariah viii. 16; *cf.* 2 Samuel xv. 2-6; Genesis xxiii. 18), which will certainly provide the necessary door and door-post, even though the adjoining wall may be of some material which would not lend itself to the ceremony. What happens? The slave publicly, in the presence of the very judges who would have to try the question of fact should any dispute hereafter arise, submits to having an indelible mark, which will always be evidence in case of any dispute, made on that part of his body where it will do least harm. If he should hereafter say, "True, I have this mark, but it was made without my consent," the knowledge of the judges will decide the issue. If all the judges be dead, yet, as the ceremony was public, there will be the maximum probability that some witness of



it will survive who can prove what he saw. The ceremony may of course also have some archæological or symbolical meaning, but it is impossible to feel any doubt as to its legal and practical aspects. It is in accordance with all we know of the ceremonies of ancient law before the introduction of the properly authenticated writing, which, in a more mature system, provides the necessary evidence. In all ancient systems of law we find the same need for evidence giving rise to the same publicity, for the question of proof has to be faced in every age. The Pentateuch knows nothing of written documents properly witnessed and authenticated by the signatures or seals of all the parties to the transaction. Writing it knows—we meet with it in the Deuteronomic law of divorce and in some of the covenant ceremonies. But in those very covenant ceremonies it is a mere adjunct to the ceremonies that we see in covenants which have no writing, and in no case is the writing authenticated as it would be in any mature system of law. The Israel of the Pentateuch has yet to pass through long ages of development before its law can embody the ideas which give rise to the Egyptian legal documents of the year 2500 B.C., the Babylonian legal tablets, the conveyance of the thirty-second chapter of Jeremiah, or the modern English deed. The historical student of law realises after the first glance at the legislation that the story of Dagon is about to find a literary parallel in the history of the documentary theory.

To return to the slave laws: when we look at the passage in Deuteronomy we find nothing about the door of the master's dwelling, only the phrase "the door." Can anybody doubt that every contemporary would have understood by this the door of the gate?

We may now deal with a further objection of Dr. Driver's:—

In Exodus xxi. 2-11 a Hebrew bondman is to serve for six years, and to receive his freedom in the seventh year